

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

AUTO SERVICE RISKS

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART
COMMERCIAL PROPERTY COVERAGE PART – BUILDING AND PERSONAL PROPERTY COVERAGE FORM
COMMERCIAL PROPERTY COVERAGE PART – CAUSES OF LOSS – SPECIAL FORM

The provisions of the Building And Personal Property Coverage Form, Causes Of Loss – Special Form and the Commercial General Liability Coverage Part apply except as otherwise provided in this endorsement. This endorsement applies only if the Coverage Forms and Coverage Part named above are all included in this policy. All numbers and letters used to designate paragraphs in this endorsement are specific to this endorsement only. They do not reference paragraphs in the Commercial Property or Commercial General Liability Coverage Parts.

I. Changes To The Building And Personal Property Coverage Form

A. The following is added to **Building in the **Coverage** Section:**

1. Above and below ground gasoline, diesel, kerosene or propane fuel storage tanks including their piping and connections pertaining thereto; and
2. Above and below ground gasoline, diesel, kerosene or propane fuel pumps and their electrical equipment.

With respect to the coverage provided by Paragraphs 1. and 2. above, underground pipes, flues or drains under **Property Not Covered** in the **Coverage** Section do not apply.

B. The following are added to **Property Not Covered in the **Coverage** Section:**

1. Property in storage away from the premises shown in the Declarations, except as provided in the Coverage Extensions of this endorsement;
2. Computers which are permanently installed in any aircraft, watercraft, motortruck or other vehicle.

C. The following coverages are added to **Additional Coverages in the **Coverage** Section:**

1. Money Orders And Counterfeit Money

We will pay for loss resulting directly from your having accepted in good faith, in exchange for merchandise, "money" or services:

- a. Money orders issued by any post office, express company or bank that are not paid upon presentation; or
- b. "Counterfeit money" that is acquired during the regular course of business.

The most we will pay for any loss in any one "occurrence" under this Additional Coverage is \$1,500.

2. Forgery Or Alteration

- a. We will pay for loss resulting directly from "forgery" or alteration of checks, drafts, promissory notes, or similar written promises, orders or directions to pay a sum certain in "money" that are:

(1) Made or drawn by or drawn upon you; or

(2) Made or drawn by one acting as your agent;

or that are purported to have been so made or drawn.

- b. If you are sued for refusing to pay any instrument covered in Paragraph a. above, on the basis that it has been forged or altered, and you have our written consent to defend against the suit, we will pay for any reasonable legal expenses that you incur and pay in that defense.
- c. We will treat mechanically reproduced facsimile signatures the same as handwritten signatures.

- d. For the purpose of this coverage, check includes a substitute check as defined in the Check Clearing for the 21st Century Act, and will be treated the same as the original it replaced.
- e. The most we will pay for any loss in any one "occurrence", including legal expenses, under this Additional Coverage is \$5,000.

II. Changes To The Causes Of Loss – Special Form

The following exclusions are added to the **Exclusions** Section, and apply only to coverage for "computers":

- A. We will not pay for loss or damage caused directly or indirectly by any of the following. Such loss or damage is excluded regardless of any other cause or event that contributes concurrently or in any sequence to the loss.

1. Errors Or Omissions

Errors or omissions in processing, recording or storing electronic data on "computers".

However, we will pay for direct loss or damage caused by resulting fire or explosion if these causes of loss would otherwise be covered by this policy.

2. Electrical Disturbance

Electrical or magnetic injury, disturbance or erasure of electronic recordings.

However, we will pay for direct loss or damage caused by lightning.

3. Computer-Related Losses

The failure, malfunction or inadequacy of:

- a. Any of the following, whether belonging to any insured or to others:
 - (1) "Computer" hardware, including microprocessors;
 - (2) "Computer" application software;
 - (3) "Computer" operating systems and related software;
 - (4) "Computer" networks;
 - (5) Microprocessors ("computer" chips) not part of any "computer" system; or
 - (6) Any other computerized or electronic equipment or components; or

- b. Any other products, and any services, data or functions that directly or indirectly use or rely upon, in any manner, any of the items listed in Paragraph **c.(1)** above;

due to the inability to correctly recognize, process, distinguish, interpret or accept one or more dates or times.

4. Computer Advice Or Consultation

Any advice, consultation, design, evaluation, inspection, maintenance, repair, replacement or supervision provided or done by you or for you to determine, rectify or test for, any potential or actual problems described in Exclusion **c.** above.

- B. If an excluded Cause of Loss as described in Exclusion **b.**, **c.** or **d.** above results in a "specified cause of loss", or in elevator collision resulting from mechanical breakdown, we will pay only for the loss or damage caused by such "specified cause of loss" or elevator collision. We will not pay for repair, replacement or modification of any items in Exclusion **c.** above to correct any deficiencies or change any features.

III. Changes To The Commercial General Liability Coverage Part

The **Premium Audit** Condition is replaced by the following:

PREMIUM AUDIT

- A. This Coverage Part is subject to audit if a premium designated as an advance premium is shown in the Declarations. We will compute the final premium due when we determine your actual exposures.
- B. Premium shown in this Coverage Part as advance premium is a deposit premium only. At the close of each audit period we will compute the earned premium for that period and send notice to the first Named Insured. The due date for audit and retrospective premiums is the date shown as the due date on the bill. If the sum of the advance and audit premiums paid for the policy period is greater than the earned premium, we will return the excess to the first Named Insured.
- C. The first Named Insured must keep records of the information we need for premium computation, and send us copies at such times as we may request.

IV. Definitions

A. "Computer" means:

1. Your programmable electronic equipment that is used to store, retrieve and process electronic data. It includes their component parts and dedicated air conditioning, fire suppression equipment and electrical equipment used exclusively in your "computer" operations; and
2. Associated peripheral equipment that provides communication, including input and output functions such as printing or auxiliary functions such as electronic data transmission.

It does not include electronic data and media.

B. "Counterfeit money" means an imitation of "money" that is intended to deceive and to be taken as genuine.

C. "Forgery" means the signing of the name of another person or organization with intent to deceive. It does not mean a signature which consists in whole or in part of one's own name signed with or without authority, in any capacity, for any purpose.

D. "Money" means:

1. Currency, coins and bank notes in current use and having a face value; and
2. Travelers checks, register checks and money orders held for sale to the public.

E. "Occurrence":

1. As respects the coverage provided under Paragraph **C.** of Section **I** of this endorsement for Money Orders And Counterfeit Money only, "occurrence" means:
 - a. An act or series of related acts involving one or more persons; or
 - b. An act or event, or a series of related acts or events not involving any person.
- 2 As respects the coverage provided under Paragraph **C.** of Section **I** of this endorsement for Forgery Or Alteration only, "occurrence" means all loss caused by any person or in which that person is involved, whether the loss involves one or more instruments.